Annexure – 1

COVER NOTE

Reference:

1. NOMINATED SUBCONTRACTOR's initial offer Number _____ received vide email dated _____
2. NOMINATED SUBCONTRACTOR's final offer Number ____ received vide email dated _____

Dear Sir,

In relation to NOMINATED SUBCONTRACTOR's offer under reference and subsequent discussions, as referred above , this is to inform that _____ , having its office at _____ (hereinafter referred to as **"GENERAL CONTRACTOR"**, which expression, unless repugnant to the context or meaning thereof, shall be deemed to mean and include its successors and assigns) hereby awards **M/s** _____ having its office at _____ (hereinafter referred to as **"NOMINATED SUBCONTRACTOR"**, which expression, unless repugnant to the context or meaning thereof, shall be deemed to mean and include its successors and assigns) for **Designing, Providing, Fabricating & Fixing Motorised GI Rolling Shutter Works at Public Parking Lot** at **Salsette 27 Project – Byculla - Mumbai** as per **'Cover Note'** specified in **Annexure – 1**, **'General Conditions'** enumerated in **Annexure-2**, **'Condition of Particular Application'** detailed in **Annexure - 3, 'Responsibility Matrix'** enumerated in **Annexure-3A 'Schedule of quantities and prices'** specified in **Annexure - 4**, **'Contract Safety document'** specified in **Annexure - 5 ,'Statutory Compliances'** specified in **Annexure – 6, 'Drawings'** specified in **Annexure – 7** and **'List of Makes'** specified in **Annexure – 8.**

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The GENERAL CONTRACTOR and the NOMINATED SUBCONTRACTOR are hereinafter collectively referred to as "Parties" and individually as a "Party".

1. **BRIEF SCOPE OF WORK:**

The present scope shall include, the work like, but not limited to, **Designing, Providing, Fabricating & Fixing Motorised GI Rolling Shutter Works at Public Parking Lot** including all required materials, manpower, handling charges, transportation, shifting, stacking, loading, unloading, lead, lift, tools, tackles, equipment, scaffolding, staging, etc., complete to the satisfaction of GENERAL CONTRACTOR's Project-In-Charge, Salsette 27 Project, – Byculla - Mumbai. The said work is to be performed in line with the "Schedule of Quantities and Prices" specified in Annexure - 4 and "Drawings" specified in Annexure - 8.

2. **WORK ORDER SUM:**

Total estimated Work Order Sum for entire work within the scope of this Work Order shall **Rs. _____ /- (Rupees _____ Only**) Including applicable taxes, loading, unloading and any other charges of whatsoever nature which NOMINATED SUBCONTRACTOR may incur.

This value is estimated and not the minimum or guaranteed value for the subject work therefore should be considered as indicative value for the purpose of submitting the Bank Guarantees and Insurances. The Schedule of Quantities and Prices is as set forth in Annexure - 4.

3. **TYPE OF WORK ORDER:**

This is an item rate Work Order based on estimated quantities as mentioned in Schedule of Quantities and Prices, as set forth in Annexure - 4.

4. **COMMENCEMENT OF WORK: 15-05-2019**

5. **COMPLETION SCHEDULE:**

Time is an essence of this Work Order and the entire work within the scope of this Work Order will be completed strictly in accordance with the Schedule. It is mutually agreed that work front shall be made available in phased manner. Work has to be completed in all respect by 30-06-2019 (Including monsoon) from the date of commencement of commencement of work.

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NOTE: - Numbers of days are continuous calendar days (i.e. Inclusive of all public holidays, Sunday etc.) from the date of issuance of Notice of Award/ Contract.

The NOMINATED SUBCONTRACTOR shall give the GENERAL CONTRACTOR full information in advance as to its plans for performing each part of the Work. If at any time, NOMINATED SUBCONTRACTOR's actual progress is inadequate to meet the requirements of this Contract, the GENERAL CONTRACTOR may notify the NOMINATED SUBCONTRACTOR to take such steps as may be necessary to improve its progress. If, within a reasonable period as determined by the GENERAL CONTRACTOR, the NOMINATED SUBCONTRACTOR does not improve performance to meet the Contract Milestones set forth above, the GENERAL CONTRACTOR may require an increase in NOMINATED SUBCONTRACTOR's labour force, the number of shifts, overtime operations, additional days of Work per week, expedited shipment(s) of equipment and materials, and an increase in the amount of construction plant and equipment, all without additional cost to GENERAL CONTRACTOR. Neither such notice nor GENERAL CONTRACTOR's failure to issue such notice shall relieve NOMINATED SUBCONTRACTOR of its obligation to achieve the quality of Work and rate of progress required by this Contract.

Noncompliance with GENERAL CONTRACTOR's instructions shall be grounds for GENERAL CONTRACTOR's determination that NOMINATED SUBCONTRACTOR is not executing the Work with such diligence as will assure completion within the times specified. Upon such determination, GENERAL CONTRACTOR may terminate this Contract pursuant to Clause [Termination] of General Condition- Annexure-2.

Further to the above, NOMINATED SUBCONTRACTOR shall also submit the followings within Seven (7) calendar days from the date of issuance of (LOI)/ Contract:

- Contract Schedule of Work
- Mutually agreed and jointly prepared detailed Resource Mobilization Plan
- Details of Authorized Representatives and Authorization Letters for Correspondence, Signing of Bills, other routine activities, etc.

6. CERTIFICATES & PAYMENTS:

a) The NOMINATED SUBCONTRACTOR shall submit monthly running bills in approved format for materials and works along with required details and measurements as directed by the GENERAL CONTRACTOR's Project-in-charge (PIC). Payment against all these running bills shall be treated as 'Interim Payment'.

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b) All interim payments made to NOMINATED SUBCONTRACTOR during the progress of the works and thereafter against various running bills shall deem to be on account payments, to be adjusted in the final Payment Certificate, issued after the issuance of Completion Certificate and Handing Over of the Works to the GENERAL CONTRACTOR.

c) All Interim payment shall be released within Forty (40) days from certification of invoice by GENERAL CONTRACTOR's PIC. Final Payment shall be released within Ninety (90) days from the date of issuance of Final Completion Certificate issued by the GENERAL CONTRACTOR's (PIC) against the Final Bill of the CONTRACTOR along with No-claim Certificate.

7. ESCALATION:

All prices are fixed for the duration of the Contract and are not subject to escalation for any cause whatsoever.

No escalation shall be payable on basic rates and Extra items.

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